

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER KAIN,

Petitioner

VS.

SHANE KING,

Respondent

) Case Number: FDV-17-813669

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY VISITATION (PARENTING TIME),
AND TIER II INTERVIEW WITH MINOR CHILD

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom Video on 9/15/2026 at 9am in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Jennifer Kain (Mother) and Respondent Shane King (Father) have one minor child together, Tallulah, who is almost 17 years old (DOB 10/13/2009). The parties have shared joint legal and physical custody since 2018, with the exception that Father has sole legal custody with respect to school selection and enrollment. Since then, the parties have reached a number of agreements through mediation with Family Court Services.
- 2) On 4/30/2026, Mother filed a request for modification of the current 50/50 physical custody order and a Tier II interview of Tallulah. She states that based on Tallulah's age, maturity, and her needs and stated wishes, she would like Tallulah to "transition . . . to a stable primary residence in my home to provide the emotional stability and stress reduction required for her continued health

1 and academic success as she enters the most critical years of high school.” Father filed a response
2 on 5/27/2026, opposing this request, stating, among other things, that Tallulah is a “remarkable
3 young woman” who is doing well under the current custodial plan that has been in place for many
4 years. He states that he respects Tallulah’s wishes, but that her preference for one home over
5 another, “particularly where that preference may reflect fewer rules and expectations rather than
6 any harm,” does not constitute a material change in circumstances justifying a change in custody.
7 On 6/1/2026, Mother filed an update declaration stating, among other things, that the material
8 change in circumstances is that Tallulah is now a “highly mature and responsible” 16.5-year-old
9 who is able to express her wishes and deserves to be heard. She provides additional information
10 to the Court regarding Tallulah’s health and school and home situation. The Court has reviewed
11 and considered both parties’ declarations.

- 12 3) On 8/13/2026, the Court ordered a Tier II interview of Tallulah for 9/1/2026 and set the matter for
13 further hearing on 9/15/2026. Family Court Services conducted the Tier II interview and a report
14 of the interview has been provided to the Court and to the parties.

15 **B. Findings and Orders**

- 16 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
17 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
18 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
19 child is the United States.
- 20 2) **The parties are ordered to appear in person or via Zoom Video on 9/15/2026 at 9am in**
21 **Department 404.**
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